



Book	Policy Manual
Section	Policies for the Board ~ April 24, 2019
Title	Copy of Vol. 37, No. 2 - January 2019 Revised SCHOOL CHOICE OPTIONS
Code	po5113.02
Status	First Reading
Adopted	July 23, 2007

5113.02 - **SCHOOL CHOICE OPTIONS** ~~PROVIDED BY THE NO CHILD LEFT BEHIND ACT~~

The Board of Education acknowledges that the Elementary and Secondary Education Act (ESEA), as amended, ~~Federal No Child Left Behind Act of 2001 ("NCLBA")~~ provides that the parents/guardians of students enrolled in a Title I school the first year following the building's identification as being in "School Improvement", have the right to transfer their children to another school in the District, provided there is a school that provides instruction at the students' grade level(s) and such school has not been identified as being in the process of school improvement, corrective action, or restructuring. If there is not another school in the District offering instruction at the students' grade level(s) that has not been identified as needing improvement, the Superintendent shall contact neighboring districts and request that they permit students to transfer to a school in one of those districts. The Superintendent shall also offer Supplemental Educational Services (SES) to students in any school no later than the first year following the building's identification as being in "School Improvement," regardless of whether a transfer option is available.

Additionally, students attending a "persistently dangerous" school, as defined by State law have the right to transfer to another "safe" school in the District. If there is not another "safe" school in the District providing instruction at the students' grade level(s), the Superintendent shall contact neighboring districts and request that they permit students to transfer to a school in one of those districts.

Furthermore, a student who is a victim of a "violent crime" on school property also has the right to transfer to another school. If there is not another school in the District providing instruction at the student's grade level, the Superintendent shall contact neighboring districts and request that they permit that student to transfer to a school in one of those districts providing instruction at the student's grade level.

The Board of Education authorizes such transfers in accordance with AG 5113.02.

Children who transfer in accordance with this policy will be permitted to remain at the school of transfer until completing the highest grade at the school.

Title I, Section 1116(b)(1)(E) of the ~~No Child Left Behind Act of 2001~~ Elementary and Secondary Education Act, as amended
 Title I, Section 1116(e) of the Elementary and Secondary Education Act, as amended ~~No Child Left Behind Act of 2001~~
 Title IX, Section 9532 of the Elementary and Secondary Education Act, as amended ~~No Child Left Behind Act of 2001~~

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Legal Title I, Section 1116(b)(1)(E) of the Elementary and Secondary Education Act, as amended
 Title I, Section 1116(e) of the Elementary and Secondary Education Act, as amended
 Title IX, Section 9532 of the Elementary and Secondary Education Act, as amended

Last Modified by Jean Kulik on March 13, 2019